

HOUSE No. 3731

The Commonwealth of Massachusetts

PRESENTED BY:

Jay D. Livingstone

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to enhance pedestrian safety.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jay D. Livingstone</i>	<i>8th Suffolk</i>	<i>1/15/2025</i>

HOUSE No. 3731

By Representative Livingstone of Boston, a petition (accompanied by bill, House, No. 3731) of Jay D. Livingstone relative to pedestrian safety. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to enhance pedestrian safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 18 of chapter 81 of the General Laws, as so appearing in the 2022
2 Official Edition, is hereby amended by striking out the words “or for injury sustained upon the
3 sidewalk of a state highway”

4 SECTION 2. Said Section 18 of chapter 81, as so appearing in the 2022 Official Edition,
5 shall be further amended by striking out the words “four thousand dollars” and inserting in place
6 there of the following words:- “one hundred thousand dollars”

7 SECTION 3. Section 15 of chapter 84, as so appearing in the 2022 Official Edition, is
8 hereby amended by striking out the words “five thousand dollars” and inserting in place there of
9 the following words:- “one hundred thousand dollars”

10 SECTION 4. Section 18 of said chapter 84, as so appearing in the 2022 Official Edition,
11 is hereby amended by striking out the words “within thirty days thereafter” and inserting in place
12 there of the following words:- “within two years thereafter”

SECTION 5. Section 19 of said chapter 84, as so appearing in the 2022 Official Edition, is hereby amended by striking out the words “If the person injured dies within the time required for giving the notice, his executor or administrator may give such notice within thirty days after his appointment. If by reason of physical or mental incapacity it is impossible for the person injured to give the notice within the time required, he may give it within thirty days after such incapacity has been removed, and if he dies within said thirty days his executor or administrator may give the notice within thirty days after his appointment.” and inserting in place there of the following words:- “If the person injured dies within the time required for giving the notice, his executor or administrator may give such notice within two years after his appointment. If by reason of physical or mental incapacity it is impossible for the person injured to give the notice within the time required, he may give it within two years after such incapacity has been removed, and if he dies within said two years his executor or administrator may give the notice within two years after his appointment.”

SECTION 6. Section 36 of chapter 92, as so appearing in the 2022 Official Edition, is hereby amended by striking out the words “or for injury sustained upon the sidewalk of a boulevard”